

1 ENGROSSED HOUSE
2 BILL NO. 4075

By: Caldwell (Trey) and Kane of
the House

3 and

4 Hall and Haste of the
5 Senate

6
7 An Act relating to Oklahoma Water Resources Board;
8 making appropriations; identifying source;
9 establishing amounts; providing purposes; identifying
10 funds appropriated to the Oklahoma Water Resources
11 Board; authorizing the Oklahoma Water Resources Board
12 to transfer and allocate between projects as needed
13 for certain purposes; requiring and limiting the
14 utilization of funds; creating certain special
15 accounts; limiting duration of accounts; requiring
16 certain determination; providing and limiting the
17 nature of the accounts and the funds within the
18 accounts; authorizing agency to submit request for
19 certain deposits or transfers; requiring certain
20 compliance and verifications; authorizing certain
21 memorandums of understanding; limiting scope;
22 prohibiting certain memoranda terms; authorizing and
23 limiting the promulgation of rules and utilization of
24 procedures; requiring certain reports and submissions
to certain entities; requiring appearance before
certain joint committee; limiting duration of certain
requirements; providing for noncodification; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Oklahoma Water Resources
Board from any monies not otherwise appropriated from the Statewide

1 Recovery Fund established in Section 255 of Title 62 of the Oklahoma
2 Statutes, the sum of Twenty-five Million Nine Hundred Ninety-eight
3 Thousand Seven Hundred Ninety-eight Dollars (\$25,998,798.00) or so
4 much thereof as may be necessary to complete ongoing projects that
5 have received prior appropriations from the Statewide Recovery Fund
6 or to target statewide strategic water infrastructure projects.
7 Such funds shall be utilized in a manner consistent with the
8 recommendations adopted by the Joint Committee on Pandemic Relief
9 Funding on April 15, 2026.

10 SECTION 2. NEW LAW A new section of law not to be
11 codified in the Oklahoma Statutes reads as follows:

12 Of the funds appropriated to the Oklahoma Water Resources Board
13 pursuant to:

14 1. Enrolled Senate Bill No. 429 of the 2nd Regular Session of
15 the 58th Oklahoma Legislature;

16 2. Enrolled Senate Bill No. 42 of the 2nd Regular Session of
17 the 58th Oklahoma Legislature;

18 3. Enrolled Senate Bill No. 4 of the 2nd Extraordinary Session
19 of the 58th Oklahoma Legislature;

20 4. Enrolled Senate Bill No. 13 of the 2nd Extraordinary Session
21 of the 58th Oklahoma Legislature;

22 5. Enrolled House Bill No. 2942 of the 1st Regular Session of
23 the 59th Oklahoma Legislature;

1 6. Enrolled House Bill No. 2937 of the 2nd Regular Session of
2 the 59th Oklahoma Legislature; and

3 7. Enrolled House Bill No. 2789 of the 1st Regular Session of
4 the 60th Oklahoma Legislature,
5 the Oklahoma Water Resources Board is hereby authorized to transfer
6 and allocate amounts between such projects as needed in order to
7 complete any such project and purpose listed in measures described
8 in paragraphs 1, 2, 3, 4, 5, 6, and 7 of this section.

9 SECTION 3. NEW LAW A new section of law not to be
10 codified in the Oklahoma Statutes reads as follows:

11 A. There is hereby created in the State Treasury a Statewide
12 Recovery Special Account for the Oklahoma Water Resources Board for
13 each appropriation section of this act. The duration of such
14 accounts shall continue for the period of time that monies related
15 to the American Rescue Plan Act of 2021 are being budgeted,
16 expended, or managed in the state. The ending of such period shall
17 be determined by the State Treasurer, and shall result in the
18 closing of such accounts as a matter of law. Such accounts shall be
19 continuing accounts as otherwise provided in this section, not
20 subject to fiscal year limitations, and shall exclusively consist of
21 monies related to the relevant appropriations made in this act and
22 as otherwise directed by law. All monies deposited to the credit of
23 such accounts are hereby appropriated and may be budgeted and
24 expended by the Oklahoma Water Resources Board in accordance with

1 the provisions of this act. Expenditures from such accounts shall
2 be made upon warrants issued by the State Treasurer against claims
3 filed as prescribed by law with the Director of the Office of
4 Management and Enterprise Services for approval and payment.

5 B. The Oklahoma Water Resources Board is authorized to request
6 in writing that the monies appropriated by the provisions of this
7 act be deposited or transferred to the accounts created pursuant to
8 subsection A of this section. No later than seven (7) calendar days
9 from the date of such request, the Director of the Office of
10 Management and Enterprise Services shall comply with such request
11 and verify to the requesting agency that such deposit or transfer
12 has been completed.

13 SECTION 4. NEW LAW A new section of law not to be
14 codified in the Oklahoma Statutes reads as follows:

15 The Oklahoma Water Resources Board may enter into memorandums of
16 understanding with other agencies of the State of Oklahoma for the
17 auditing, documentation, evaluation, implementation, oversight,
18 reporting, and management of funds and associated efforts related to
19 the appropriations made in this act; provided, that no such
20 memorandum of understanding shall require or include, as an option
21 or condition, the direct or practical transfer or relinquishment of
22 control by the agency appropriated such funds to budget, expend,
23 allocate, and request the distribution of the funds appropriated by
24 this act.

1 SECTION 5. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 The Oklahoma Water Resources Board may promulgate rules, utilize
4 existing rules, establish procedures, and utilize existing
5 procedures to implement the provisions of this act; provided, such
6 rules and procedures do not conflict with or impede the provisions
7 of this act.

8 SECTION 6. NEW LAW A new section of law not to be
9 codified in the Oklahoma Statutes reads as follows:

10 The Oklahoma Water Resources Board is authorized to enter into
11 contracts with financial institutions and execute such instruments
12 as may be necessary and convenient to hold and disseminate grant
13 funds in accordance with applicable federal and state regulations
14 and Board policies.

15 SECTION 7. NEW LAW A new section of law not to be
16 codified in the Oklahoma Statutes reads as follows:

17 A. The Oklahoma Water Resources Board shall:

18 1. Submit to the Chairs of the Joint Committee on Pandemic
19 Relief Funding, or any successor Senate legislative or House of
20 Representatives legislative committee or joint committee, as
21 designated by the President Pro Tempore of the Senate and the
22 Speaker of the House of Representatives:
23
24

- a. a written or electronic quarterly report detailing the budgeting, expenditure, and management of all monies appropriated in this act, and
- b. a copy of all memorandums of understanding and contracts with third parties entered into by the Oklahoma Water Resources Board to facilitate, assist, or administer powers and duties provided to the Oklahoma Water Resources Board under the provisions of this act; and

2. At the Joint Committee on Pandemic Relief Funding's request, appear before the Joint Committee no later than six (6) months after the effective date of this act, and as otherwise requested by the Joint Committee to provide a status update regarding the implementation of the provisions of this act.

B. The provisions of subsection A of this section shall remain applicable for the period of time that monies appropriated under this act are being budgeted, expended, or managed in the state. The ending of such period shall be determined by the State Treasurer, and shall be reported to the Governor, President Pro Tempore of the Senate and the Speaker of the House of Representatives.

SECTION 8. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

1 Passed the House of Representatives the 21st day of April, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate